

Court No. - 21

Case :- WRIT - C No. - 10727 of 2024

Petitioner :- M/S Hotel Pride Inn

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. While in midst of hearing this petition at around 12:50 p.m., we heard slogans by a mob in support of candidates contesting the ensuing elections of High Court Bar Association. The slogans shouting was at such high pitch that it created obstruction in the Court proceedings and did not allow the Court to hear the case due to excessive noise on both sides of the Court room.

2. We have been informed by Shri Rajiv Gupta, learned Additional Chief Standing Counsel that the elections of the Bar Association are to take place on 03.04.2024.

3. We are also informed that Model Code of Conduct has been issued by the Returning Officers, which prohibits such kind of activities. Even otherwise, such slogan shouting, which intends to interfere with the administration of justice, cannot be countenanced.

4. We request the Registrar General to inform Returning Officers to remain present in the Court at 2.00 p.m. today. It would be desirable that a representative of Elders' Committee also remains present.

5. The Registrar (Protocol) will preserve CCTV footage of today's incident as noted above, wherein the slogans shouting may have been recorded and shall produce the same before us at 2.00 p.m. The Registry shall identify the persons who were involved in slogans shouting and creating ruckus in the corridors of this Court, disturbing the functioning.

6. Put up after mid day recess.

Order Date :- 2.4.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The case has been placed before us again after mid-day recess.
2. Sri V.M. Zaidi, learned Senior Advocate, Sri Prabhakar Awasthi, learned Advocate, Sri Vinod Kant Srivastava, learned Senior Advocate, Sri R.C. Singh, learned Senior Advocate, Sri Vashistha Tiwari, learned Advocate, Sri Chandan Sharma, learned Advocate, the Returning Officers, are present in Court. They have placed before us for perusal the Code of Conduct prescribed by them for the contesting candidates. The relevant clauses of the said Code of Conduct are as follows: -

A. No candidate or his supporter shall fix/paste any Poster, Hand-Bills, Photographs or other election materials within the High Court Premises as well as within the municipal limits of Allahabad.

B. No candidate or his supporters shall take out any procession in the corridors of the court or premises and in the city, no slogans or loud voices for the purposes of canvassing shall be permitted, so as to disturb the functioning of the court.

H. Any violation of the conduct rules, the advocate involved shall be tried by the State Bar Council and also for contempt of court apart from disciplinary action by Elders committee.

3. It specifically provides that in case of breach of Model Code of Conduct, disciplinary action would be taken which may include: -

1. Debarring the candidate from contesting election.
2. Suspension of membership of agents and supporters of candidates.
3. Debarring such supporters and agents from voting.
4. Recommending their matter to the U.P. Bar Council for disciplinary action under Section 35 of Advocates Act.

4. The Returning Officers point out that they have been observing breach of the prescribed Code of Conduct by some candidates and their supporters and yesterday they had taken decision to cancel the election on account of the said reason. Thereafter, the candidates approached them and assured that there shall be no breach of the prescribed Code of Conduct and they will provide all support to ensure its compliance. However, the breaches are still being made.

5. Some of the candidates who are contesting the election are also present. They have assured the Court that they will prevail upon the other candidates and the supporters not to indulge in slogan shouting or taking out processions in the corridors of the Court.

6. The Registrar (Protocol) has provided CCTV footage of one camera and seeks time to provide clippings of other cameras also, after obtaining the same from the security personnels. He also seeks time to identify the persons involved in slogan shouting and disturbing the Court proceedings.

7. Accordingly, the matter is adjourned and shall be taken up **tomorrow at 12 noon.**

8. It is expected that the candidates who are contesting the election, learned Advocates and all those participating in the election, will ensure that the functioning of the Court is not disturbed on account of any act on their part, otherwise, the Court shall be constrained to take further action treating the same to be a deliberate interference in the Court proceedings.

9. The Bench Secretary shall return the pen drive to Registrar (Protocol) to facilitate identification.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.4.2024
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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. In pursuance of the orders passed yesterday, the Registrar (Protocol) has placed before us the material retrieved from CCTV recordings. It reveals that several group of persons were taking out processions carrying placards and shouting slogans. From the placards being held by them, it transpires that they were canvassing for the following candidates:-

(i) At Sl. No.5, Joint Secretary- Shashi Kumar Dwivedi;

(ii) At Sl. No.40, Vice President- Ravi Nath Tiwari;

(iii) At Sl. No.53, Vice President- Vivek Mishra;

(iv) At Sl. No.54, Governing Council- Ratnesh Pathak; and

(v) At Sl. No.55, Governing Council- Sachchidanand Yadav.

3. The Registrar (Protocol) and the Security Personnel are present in Court and seek further time to identify the Advocates who were taking out procession and had created disturbance in the functioning of the Court.

4. Accordingly, we adjourn the case and grant further time to the Registrar (Protocol) and the Security Agencies to identify the persons responsible for disturbing the Court proceedings.

5. The material, which has been placed before us, is

returned to the security agencies for doing the needful.

Order on main matter

1. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, prays for time to obtain instructions.

2. Put up as fresh on 22.04.2024.

Order Date :- 3.4.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Order on memo of petition

1. The present writ petition has been filed seeking quashing of a response given by the respondent-Electricity Department to the letter of the petitioner by which it sought certain information and documents from the department. It is reiterated in the response that Rs. 2,02,581/- is due and payable by the petitioner to the department.

2. In previous round of litigation, a petition bearing Writ-C No. 16127 of 2023, wherein also the petitioner had prayed for restraining the respondents from adding Rs. 2,02,581/- in its regular bill, was disposed of with liberty to the petitioner to file objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner has not filed any objection so far but as noted above had sought information and documents from the respondent-Electricity Department.

3. The submission of learned counsel for the petitioner is that in the absence of M.R.I. readings being provided to the petitioner, it is unable to file its objections.

4. Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent-Electricity Department states that the department had sought e-mail ID of the petitioner and as soon as it is provided the

M.R.I. readings would be supplied to the petitioner.

5. In view of the above, we permit the petitioner to supply its e-mail ID to the concerned respondent so that the M.R.I. readings are provided to it on its e-mail.

6. The petition is **disposed of** accordingly.

2. Order on order-sheet

1. In pursuance of our previous order, the Registrar (Protocol) has placed before us a list of Advocates, who were identified in the crowd which had assemble around the Court Rooms and were instrumental in creating disturbance in the functioning of the Court on 02.04.2024. He has also supplied the CCTV footage in a pen drive.

2. The Bench Secretary will keep the list and pen drive in a sealed cover.

3. As we are informed that the election result of the Bar has yet not been declared, we adjourn the matter for consideration of action to be taken, to the next date.

4. List on 13.05.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.4.2024

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Petitioner :- M/S Hotel Pride Inn

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

List on 29.05.2024.

Order Date :- 13.5.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The instant petition is listed before us only for the purposes of examining the action, which is required to be taken against the persons responsible for creating disturbance in the Court proceedings during the election of the High Court Bar Association.
2. The C.C.T.V. footage and other material indicate that number of Advocates were involved in creating disturbance. The material, which was collected by the registry to identify the names of the Advocates shall be handed over by the Bench Secretary to the Registrar General, who will preserve the same as evidence of the fact that such an incident had taken place so that in case any such act is repeated in future, the instant material could also be examined.
3. Since after taking of the cognizance of the incident, we find that elections have been held peacefully without any further disturbance, therefore, taking a lenient view, we drop the proceedings.
4. The petition is, accordingly, consigned.

Order Date :- 29.5.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)